

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

-----x  
OLIVER HERNANDEZ and SANDRA CARINO,

Plaintiffs,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY  
POLICE DEPARTMENT, POLICE OFFICER MARIANO  
BULFAMANTE, POLICE OFFICER "JOHN DOE#1" and  
POLICE OFFICER "JOHN DOE #2,"

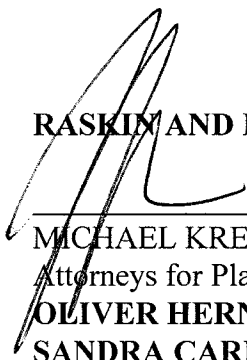
Defendants.

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**YOU ARE HEREBY SUMMONED** to answer the Complaint in this action and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's Attorneys within twenty (20) days after the service of this Summons, exclusive of the date of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint with interest and cost from the date of occurrence.

Dated: New York, New York  
August 16, 2017

**RASKIN AND KREMINS, L.L.P.**

  
MICHAEL KREMINS, ESQ.

Attorneys for Plaintiffs

**OLIVER HERNANDEZ and  
SANDRA CARINO**

160 Broadway - 4th Floor  
New York, New York 10038  
(212) 587-3434  
Our File No.: N-4594

Index No.:

**SUMMONS**

**Plaintiff designates Bronx  
County  
as Place of Trial.**

**The basis of venue is that  
Bronx County is the  
County within the City of  
New York in which the  
cause of action arose  
against defendants.**

**DEFENDANTS' ADDRESSES:**

THE CITY OF NEW YORK  
NEW YORK CITY CORPORATION COUNSEL  
Law Department  
100 Church Street  
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT  
NEW YORK CITY CORPORATION COUNSEL  
Law Department  
100 Church Street  
New York, New York 10007

POLICE OFFICER MARIANO BULFAMANTE  
New York City Police Department  
40<sup>th</sup> Precinct  
257 Alexander Ave  
Bronx, New York 10454

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

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OLIVER HERNANDEZ and SANDRA CARINO,

Plaintiffs,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY  
POLICE DEPARTMENT, POLICE OFFICER MARIANO  
BULFAMANTE, POLICE OFFICER "JOHN DOE#1"  
and POLICE OFFICER "JOHN DOE#2,"

Defendants.  
-----x

Index No.:

**VERIFIED COMPLAINT**

PLAINTIFFS, OLIVER HERNANDEZ and SANDRA CARINO, by their attorneys, RASKIN  
AND KREMIN, L.L.P., complaining of defendants, upon information and belief, respectfully  
alleges as follows:

**AS AND FOR A FIRST CAUSE OF ACTION**

1. That at all times hereinafter mentioned, plaintiff, OLIVER HERNANDEZ ("plaintiff"),  
was and is a resident of the County of Bronx, City and State of New York.
2. That at all times hereinafter mentioned, plaintiff, SANDRA CARINO ("plaintiff"), was  
and is a resident of the County of Bronx, City and State of New York.
3. That at all times hereinafter mentioned, defendant, THE CITY OF NEW YORK, was and  
still is a municipal corporation duly organized and existing under and by virtue of the laws  
of the State of New York.
4. That at all times hereinafter mentioned, defendant, THE NEW YORK CITY POLICE  
DEPARTMENT, was and still is a department and/or agency that is wholly owned and  
managed by defendant, THE CITY OF NEW YORK.
5. That at all times hereinafter mentioned, defendant, POLICE OFFICER MARIANO

BULFAMANTE("Officer Bulfamante"), was employed by defendant, THE CITY OF NEW YORK.

6. That at all times hereinafter mentioned, defendant, POLICE OFFICER "JOHN DOE #1", was employed by defendant, THE CITY OF NEW YORK.
7. That at all times hereinafter mentioned, defendant, POLICE OFFICER "JOHN DOE #2", was employed by defendant, THE CITY OF NEW YORK.
8. That at all times hereinafter mentioned, Officer Bulfamante was employed by defendant, THE NEW YORK CITY POLICE DEPARTMENT.
9. That at all times hereinafter mentioned, defendant, POLICE OFFICER "JOHN DOE #1" was employed by defendant, THE NEW YORK CITY POLICE DEPARTMENT.
10. That at all times hereinafter mentioned, defendant, POLICE OFFICER "JOHN DOE #2" was employed by defendant, THE NEW YORK CITY POLICE DEPARTMENT.
11. That on the 26<sup>th</sup> day of January, 2017, a date within ninety (90) days after the date on which the subject incident occurred, a written Notice of Claim, dated and sworn to on January 26, 2017 ("Notice of Claim"), was duly served upon the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, pursuant to Section 50-e of the General Municipal Law.
12. Upon information and belief, on or about April 25<sup>th</sup> 2017, plaintiff, OLIVER HERNANDEZ, attended a hearing pursuant to Section 50-h of the General Municipal Law pursuant to a notice of such hearing by defendant, THE CITY OF NEW YORK.
13. Upon information and belief, on or about April 17<sup>th</sup> 2017, plaintiff, SANDRA CARINO, attended a hearing pursuant to Section 50-h of the General Municipal Law pursuant to a notice of such hearing by defendant, THE CITY OF NEW YORK.

14. More than thirty (30) days have elapsed since the presentation of the Notice of Claim, and adjustment or payment thereof has been refused or neglected by the defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, Officer Bulfamante and POLICE OFFICER "JOHN DOE#1," and POLICE OFFICER "JOHN DOE#2."
15. That plaintiffs have complied with all conditions precedent to the commencement of this action, and in particular, within ninety (90) days of this occurrence plaintiffs have served the Notice of Claim upon defendants as aforesaid, more than thirty (30) days have elapsed since the presentation of their claim and adjustment or payment thereof has been neglected or refused by defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, Officer Bulfamante, POLICE OFFICER MARIANO, POLICE OFFICER "JOHN DOE #1" and POLICE OFFICER "JOHN DOE #2" and plaintiffs have attended a hearing pursuant to Section 50-H of the General Municipal Law.
16. This action was commenced against the defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, Officer Bulfamante, POLICE OFFICER "JOHN DOE #1" and POLICE OFFICER "JOHN DOE #2" on a date within one (1) year and ninety (90) days after the occurrence of the incident upon which this action is based and/or the accrual of this cause of action.
17. That at all times hereinafter mentioned, defendant, Officer Bulfamante, was a member of THE NEW YORK CITY POLICE DEPARTMENT ("NYPD") and acting within the scope of his employment.
18. That at all times hereinafter mentioned, defendant, POLICE OFFICER "JOHN DOE #1", was a member of THE NEW YORK CITY POLICE DEPARTMENT ("NYPD")

and acting within the scope of his employment.

19. That at all times hereinafter mentioned, defendant, POLICE OFFICER "JOHN DOE #2", was a member of THE NEW YORK CITY POLICE DEPARTMENT ("NYPD") and acting within the scope of his employment.
20. That on or about October 30, 2016, at approximately 4:00 a.m., defendants, Officer Bulfamante, POLICE OFFICER "JOHN DOE #1" and POLICE OFFICER "JOHN DOE #2," came to be present at/near the vicinity of 53 Bruckner Boulevard, Bronx County, City and State of New York, during the normal course of their employment with defendants, THE CITY OF NEW YORK and/or THE NEW YORK CITY POLICE DEPARTMENT.
21. That on or about October 30, 2016, at approximately 4:00 a.m., plaintiffs OLIVER HERNANDEZ and SANDRA CARINO, were lawfully at/near the vicinity of 53 Bruckner Boulevard, Bronx County, City and State of New York.
22. On or about, October 30, 2016, at or about 4:00 a.m., plaintiff OLIVER HERNANDEZ arrived at or near 53 Bruckner Boulevard by a taxicab.
23. Plaintiff, SANDRA CARINO was walking towards the sidewalk at or near 53 Bruckner Boulevard, after she had exited a separate taxicab.
24. Plaintiff SANDRA CARINO was in possession of plaintiff OLIVER HERNANDEZ's wallet therefore plaintiff had to exit his taxicab, let the cab driver know that he was going to grab his wallet from his girlfriend and return to pay for the ride.
25. When plaintiff OLIVER HERNANDEZ walked towards the sidewalk, the cabdriver yelled that plaintiff was running away without paying for the cab ride and at that point plaintiff, OLIVER HERNANDEZ witnessed three police officers running across the street towards

him.

26. Plaintiff OLIVER HERNANDEZ attempted to show the police officers, including Officer Bulfamante, POLICE OFFICER "JOHN DOE #1" and POLICE OFFICER "JOHN DOE #2" that he had sufficient cash in his wallet to pay.
27. POLICE OFFICER "JOHN DOE #1" went behind plaintiff OLIVER HERNANDEZ and pushed and/or slammed him down onto the sidewalk which caused the left side of his head to strike the sidewalk and he then temporarily lost consciousness.
28. POLICE OFFICER "JOHN DOE #1" grabbed plaintiff OLIVER HERNANDEZ without his consent and without cause or provocation of any kind from plaintiff.
29. Upon witnessing the foregoing unexplained treatment of plaintiff OLIVER HERNANDEZ, plaintiff SANDRA CARINO who was in close proximity called out for plaintiff OLIVER HERNANDEZ's mother who resides at 53 Bruckner Boulevard, Bronx, New York 10454. As plaintiff SANDRA CARINO called out, POLICE OFFICER "JOHN DOE #2" fired a taser gun at her.
30. Two (2) prongs of the taser struck plaintiff SANDRA CARINO's left shin and soft tissue just below her left knee cap, respectively. The taser shot also caused plaintiff to fall to the sidewalk and become unconscious.
31. POLICE OFFICER "JOHN DOE #2" fired the taser at plaintiff SANDRA CARINO without her consent and without cause and/or provocation of any kind.
32. When plaintiff OLIVER HERNANDEZ regained consciousness, he was in handcuffs and saw plaintiff SANDRA CARINO unconscious on the ground near him.
33. NYPD Police Officers, including Officer Bulfamante, and/or POLICE OFFICER "JOHN DOE #1" then placed plaintiff OLIVER HERNANDEZ in a NYPD van where plaintiff

requested medical attention due to him feeling nauseous. NYPD Police Officers including Officer Bulfamante and/or POLICE OFFICER "JOHN DOE #1" wrongfully denied his request for medical attention and refused to provide plaintiff with prompt, timely and adequate medical care.

34. One of the NYPD Police Officers told plaintiff OLIVER HERNANDEZ "I've got you in custody, and I just tasered your bitch."
35. POLICE OFFICER "JOHN DOE #1" and/or Officer Bulfamante applied handcuffs to plaintiff OLIVER HERNANDEZ's wrists without consent and without cause or provocation of any kind from plaintiff.
36. NYPD Police Officers, including Officer Bulfamante and/or POLICE OFFICER "JOHN DOE #1" transported plaintiff OLIVER HERNANDEZ to 40<sup>th</sup> Precinct, 257 Alexander Avenue, Bronx, New York 10454 ("40<sup>th</sup> Precinct") immediately after his unlawful arrest where the handcuffs were so tightly fastened around his wrists that his hands became numb. Despite numerous requests, NYPD Police Officers, including Officer Bulfamanate and/or POLICE OFFICER "JOHN DOE #1" did not remove handcuffs from plaintiff's wrists until at or about 8:00 a.m., on or about October 30, 2016.
37. NYPD Police Officers, including Officer Bulfamante and/or POLICE OFFICER "JOHN DOE #1" wrongfully denied plaintiff OLIVER HERNANDEZ repeated requests for medical attention and refused to provide plaintiff with prompt, timely and adequate medical care.
38. Plaintiff OLIVER HERNANDEZ's belongings, including \$150.00 in cash and other contents with the exception of his debit card, were never returned.
39. Due to the taser prongs lodged in the soft tissue below plaintiff SANDRA CARINO's left



knee, she was transported to Lincoln Medical & Mental Health Center ("Lincoln Hospital"), 234 East 149<sup>th</sup> Street, Bronx, New York 10451, by ambulance for treatment. There, one of her hands and one of her legs were cuffed to the bed. She underwent a procedure under local anesthesia to remove the taser prong from her left knee. Thereafter, NYPD Police Officers transported plaintiff to 40<sup>th</sup> Precinct and placed her in a holding cell.

40. That on or about October 30, 2016, from at or about 4:00 a.m. through October 31, 2016, as a result of the wrongful, willful, reckless, careless and negligent acts of defendants herein, their agents, servants and/or employees, each plaintiff sustained severe and permanent personal injuries.
41. That the foregoing occurred solely and wholly as a result of the negligence of defendants herein, their agents servants and/or employees, and without any negligence on the part of plaintiffs contributing thereto.
42. That the defendants, their agents, servants and/or employees were negligent and careless in hiring, supervising, controlling, maintaining, training, educating, interviewing and investigating their agents, servants and/or employees, including, but not limited to, Officer Bulfamante, POLICE OFFICER "JOHN DOE #1" and POLICE OFFICER "JOHN DOE #2," in negligently and carelessly failing to direct their agents, servants and/or employees, including but not limited to Officer Bulfamante, POLICE OFFICER "JOHN DOE #1" and POLICE OFFICER "JOHN DOE #2," not to use improper and/or excessive force; in negligently and carelessly, willfully and wrongfully causing, permitting and allowing both plaintiffs to be subjected to assault and battery, traumatized, pushed, shoved, falsely arrested and wrongfully imprisoned causing injury, emotional and psychological damage;

in negligently and carelessly causing, permitting and allowing employees and/or personnel who were negligently trained, including, but not limited to Officer Bulfamante, POLICE OFFICER "JOHN DOE #1" and POLICE OFFICER "JOHN DOE #2", to use improper and/or excessive force; in negligently and carelessly using improper and/or excessive force; in negligently and carelessly failing to adequately train police officers, including but not limited to Officer Bulfamante, POLICE OFFICER "JOHN DOE #1" and POLICE OFFICER "JOHN DOE #2," and/or other personnel for the public's safety, including plaintiffs herein; in denying prompt and necessary medical attention; and in being otherwise careless and negligent.

43. That by reason of the foregoing, plaintiffs became sick, sore, lame and disabled; plaintiffs have received permanent personal, emotional and psychological injuries that will continue for some time to come; each plaintiff will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that each plaintiff was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to her damage in a sum which exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A SECOND CAUSE OF ACTION**

44. Plaintiffs repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 43 of the complaint herein with the same force and effect as if set forth herein at length.
45. Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, Officer Bulfamante, POLICE OFFICER "JOHN DOE #1" and POLICE OFFICER "JOHN DOE #2," their agents, servants and employees, including, but not limited

to, Officer Bulfamante, POLICE OFFICER "JOHN DOE #1" and POLICE OFFICER "JOHN DOE #2," owed a duty to each plaintiff and other members of the general public to refrain from inflicting mental and emotional harm upon them.

46. Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER MARIANO BULFAMANTE, POLICE OFFICER "JOHN DOE #1" and POLICE OFFICER "JOHN DOE #2," their agents, employees and servants, including, but not limited to, Officer Bulfamante, POLICE OFFICER "JOHN DOE #1" and POLICE OFFICER "JOHN DOE #2," , by intentionally, negligently, carelessly or recklessly engaging in the acts and omissions described hereinabove and hereinafter, and by further uttering epithets at plaintiff OLIVER HERNANDEZ in the presence of his girlfriend plaintiff SANDRA CARINO, arresting, detaining and imprisoning both plaintiffs without a warrant and/or without reasonable cause to believe that a crime had been committed and that plaintiffs committed it, by forcing plaintiffs into a NYPD vehicle in such a manner that they sustained bodily injury, by confining them in a holding cell at the 40<sup>th</sup> Precinct Police Station for a period of approximately twelve (12) hours and falsely and unjustly charging plaintiffs with various crimes, engaged in conduct toward plaintiffs so shocking, extreme and outrageous that it exceeded all reasonable bounds of decency.
47. As a result of the foregoing conduct, Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Officer Bulfamante, POLICE OFFICER "JOHN DOE #1" and POLICE OFFICER "JOHN DOE #2," intentionally, negligently, carelessly or recklessly caused plaintiffs to suffer and to continue to suffer severe mental and emotional distress.
48. As a result of the extreme, shocking, outrageous, intentional, negligent, careless and/or

reckless conduct that exceeded all reasonable bounds of decency, defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Officer Bulfamante, POLICE OFFICER "JOHN DOE #1" and POLICE OFFICER "JOHN DOE #2," plaintiffs suffered and continue to suffer severe mental and emotional distress, nervousness, tenseness, indignity, humiliation, shame and disgrace associated with the incident which is the subject of this complaint and the physical injuries.

49. The injuries sustained by plaintiffs were caused without any fault or want of care on the part of plaintiffs contributing thereto, but only by reason of intentional acts or conduct, negligence, carelessness and recklessness of defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Officer Bulfamante, POLICE OFFICER "JOHN DOE #1" and POLICE OFFICER "JOHN DOE #2."
50. By reason of the foregoing, plaintiffs have been damaged in an amount which exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A THIRD CAUSE OF ACTION**

51. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs 1 through 50 of the complaint herein with the same force and effect as if set forth herein at length.
52. At all times herein mentioned and in connection with all the acts alleged hereinabove, plaintiffs were wrongly restrained, detained, arrested, apprehended, confined and imprisoned by defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Officer

Bulfamante, POLICE OFFICER "JOHN DOE #1" and POLICE OFFICER "JOHN DOE #2."

53. At all times herein mentioned and in connection with all the acts alleged hereinabove, defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Officer Bulfamante, POLICE OFFICER "JOHN DOE #1" and POLICE OFFICER "JOHN DOE #2," acted during the course of and within the scope of their duties as employees, agents or servants of the defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT.
54. At all times herein mentioned and in connection with all the acts alleged hereinabove, defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Officer Bulfamante, POLICE OFFICER "JOHN DOE #1" and POLICE OFFICER "JOHN DOE #2," acted willfully, maliciously, wrongfully, in reckless disregard of plaintiff's interests and without proper legal authority, right, warrant, legal pretense or probable cause.
55. Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Officer Bulfamante, POLICE OFFICER "JOHN DOE #1" and POLICE OFFICER "JOHN DOE #2," did not have reasonable cause to believe that a crime was committed and that plaintiffs committed it.
56. Plaintiffs did not consent to their arrest, detention, forcible apprehension, placement in handcuffs, confinement in a holding cell at 40<sup>th</sup> Precinct Police Station, search of their person, interrogation or any of the acts or omissions of defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants,

including, but not limited to, Officer Bulfamante, POLICE OFFICER "JOHN DOE #1" and POLICE OFFICER "JOHN DOE #2."

57. Plaintiffs did not commit any crimes and/or other suspicious acts, and probable cause and/or reasonable suspicion did not exist to link plaintiffs to any crimes and/or other suspicious acts.
58. Plaintiff's arrest, detention, forcible apprehension, placement in handcuffs, confinement in a holding cell at 40<sup>th</sup> Precinct Police Station, search of their person, interrogation or other deprivation of their liberty by defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Officer Bulfamante, POLICE OFFICER "JOHN DOE #1" and POLICE OFFICER "JOHN DOE #2," were not otherwise privileged.
59. By reason of the foregoing, plaintiffs have sustained injuries as more fully set forth above and has been damaged in an amount which exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A FOURTH CAUSE OF ACTION**

60. Plaintiffs repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 59 of the complaint herein with the same force and effect as if set forth herein at length.
61. At all times herein mentioned and in connection with all the acts and omissions alleged hereinabove, defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Officer Bulfamante, POLICE OFFICER "JOHN DOE #1" and POLICE OFFICER "JOHN DOE #2," caused plaintiffs to fear that defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants,

including, but not limited to, Officer Bulfamante, POLICE OFFICER "JOHN DOE #1" and POLICE OFFICER "JOHN DOE #2," would inflict upon plaintiffs, or cause to be inflicted upon plaintiffs, harmful or offensive physical contact.

62. At all times herein mentioned and in connection with all the acts and omissions alleged hereinabove, defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Officer Bulfamante, POLICE OFFICER "JOHN DOE #1" and POLICE OFFICER "JOHN DOE #2," inflicted, or caused to be inflicted, offensive bodily contact and bodily harm upon plaintiffs.
63. At all times herein mentioned and in connection with all the acts and omissions alleged hereinabove, defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Officer Bulfamante, POLICE OFFICER "JOHN DOE #1" and POLICE OFFICER "JOHN DOE #2," acted during the course of and within the scope of their duties as employees, agents or servants of defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT.
64. At all times herein mentioned and in connection with all the acts and omissions alleged hereinabove, defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Officer Bulfamante, POLICE OFFICER "JOHN DOE #1" and POLICE OFFICER "JOHN DOE #2," acted willfully, maliciously, wrongfully, in reckless disregard of plaintiff's interests and without proper legal authority, right, warrant, legal pretense or probable cause and without consent of plaintiffs.

65. By reason of the foregoing, plaintiffs were fearful of imminent bodily injury, and suffered fright, apprehension and humiliation.
66. By reason of the foregoing, plaintiffs sustained physical injury and offensive bodily contact and physical injuries as alleged above.
67. By reason of the foregoing, plaintiffs have been damaged in an amount which exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A FIFTH CAUSE OF ACTION**

68. Plaintiffs repeat and reallege the allegations contained in paragraphs 1 through 67 above with the same force and effect as though the same were here fully set forth.
69. On or about October 30, 2016, defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Officer Bulfamante, POLICE OFFICER "JOHN DOE #1" and POLICE OFFICER "JOHN DOE #2," as agents, employee, or servants of defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, deprived plaintiffs of their liberty and civil rights, including their Fourth Amendment rights to be free from unreasonable seizure and not to be subjected to unreasonable force in the course of an arrest, without due process of law.
70. On or about October 30, 2016, defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Officer Bulfamante, POLICE OFFICER "JOHN DOE #1" and POLICE OFFICER "JOHN DOE #2," as agents, employees, or servants of the defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, were acting under color of state law in their unlawful arrest, apprehension, detention, search and



interrogation of plaintiffs and in the application of unreasonable force during the course of their unlawful arrest, apprehension, detention, search and interrogation of plaintiffs and abused their official power.

71. In their unlawful arrest, apprehension, detention, search and interrogation of plaintiffs, defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Officer Bulfamante, POLICE OFFICER "JOHN DOE #1" and POLICE OFFICER "JOHN DOE #2," as agents, employees, or servants of the defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, acted in their capacity as authorized decision-makers and makers of official policy of the defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT.
72. In the application of unreasonable force during the course of their unlawful arrest, apprehension, detention, search and interrogation of plaintiff, defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Officer Bulfamante, POLICE OFFICER "JOHN DOE #1" and POLICE OFFICER "JOHN DOE #2," as agents, employees, or servants of the defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, acted in their capacity as authorized decision-makers and makers of official policy of the defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT.
73. Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Officer Bulfamante, POLICE OFFICER "JOHN DOE #1" and POLICE OFFICER "JOHN

DOE #2,” did not have reasonable cause to believe that a crime was committed and that plaintiffs committed it.

74. Plaintiffs did not consent to their arrest, detention, forcible apprehension, placement in handcuffs, confinement in a holding cell at 40<sup>th</sup> Precinct Police Station, search of their person, interrogation or any of the acts or omissions of defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Officer Bulfamante, POLICE OFFICER “JOHN DOE #1” and POLICE OFFICER “JOHN DOE #2.”
75. Plaintiffs did not commit any crimes and/or other suspicious acts, and probable cause and/or reasonable suspicion did not exist to link plaintiffs to any crimes and/or other suspicious acts.
76. Plaintiff’s arrest, detention, forcible apprehension, placement in handcuffs, confinement in a holding cell at 40<sup>th</sup> Precinct Police Station, search of their person, interrogation or other deprivation of their liberty by defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Officer Bulfamante, POLICE OFFICER “JOHN DOE #1” and POLICE OFFICER “JOHN DOE #2,” were not otherwise privileged.
77. Plaintiffs did not present an immediate threat to the safety of defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Officer Bulfamante, POLICE OFFICER “JOHN DOE #1” and POLICE OFFICER “JOHN DOE #2.”
78. Plaintiffs did not actively resist arrest at the time defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants,

including, but not limited to, Officer Bulfamante, POLICE OFFICER "JOHN DOE #1" and POLICE OFFICER "JOHN DOE #2," used excessive force.

79. Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Officer Bulfamante, POLICE OFFICER "JOHN DOE #1" and POLICE OFFICER "JOHN DOE #2," are liable to plaintiffs for the deprivation of plaintiff's liberty and civil rights, including their Fourth Amendment rights to be free from unreasonable seizure and not to be subjected to unreasonable force in the course of an arrest, by virtue of 42 U.S.C. §1983 and the Fourteenth Amendment of the Constitution of the United States.
80. By reason of the foregoing violations of 42 U.S.C. §1983, and as a result of the injuries described hereinabove sustained by plaintiffs, plaintiffs have suffered damages.
81. Solely by reason of the violation of 42 U.S.C. §1983 by the defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Officer Bulfamante, POLICE OFFICER "JOHN DOE #1" and POLICE OFFICER "JOHN DOE #2," and as a direct and proximate cause thereof, plaintiffs have suffered the personal injuries alleged above.
82. As a result of the violation of 42 U.S.C. §1983 by the defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Officer Bulfamante, POLICE OFFICER "JOHN DOE #1" and POLICE OFFICER "JOHN DOE #2," as set forth above, and as a result of the injuries sustained by plaintiffs, plaintiffs have been damaged in an amount which exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A SIXTH CAUSE OF ACTION**

83. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs 1 through 82 of the complaint herein with the same force and effect as if set forth herein at length.
84. That the defendants, Officer Bulfamante, POLICE OFFICER "JOHN DOE #1" and POLICE OFFICER "JOHN DOE #2" acting under the color of authority and without provocation, viciously and maliciously attacked plaintiffs causing them to suffer serious, severe, permanent personal injuries and extreme conscious physical, mental and emotional pain and suffering, and required, and will require, hospitalization, medical care and treatment.
85. That defendants, Officer Bulfamante, POLICE OFFICER "JOHN DOE #1" and POLICE OFFICER "JOHN DOE #2," acting under the color of authority and without provocation, viciously and maliciously assaulted plaintiffs causing them to suffer serious, severe, permanent and extreme conscious physical, mental and emotional pain and suffering, and required, and will require, hospitalization, medical care and treatment.
86. That by reason of the foregoing, plaintiffs became sick, sore, lame and disabled; plaintiffs have received permanent personal, emotional and psychological injuries that will continue for some time to come; plaintiffs will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that plaintiffs were caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to their damage in a sum which exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION**

87. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs 1 through 86 of the complaint herein with the same force and effect as if set forth herein at length.
88. That defendants, Officer Bulfamante, POLICE OFFICER "JOHN DOE #1" and POLICE OFFICER "JOHN DOE #2," acting under the color of authority and without provocation, viciously and maliciously tasered plaintiff SANDRA CARINO causing her to suffer serious, severe, permanent personal injuries and extreme conscious physical, mental and emotional pain and suffering, and required, and will require, hospitalization, medical care and treatment.
89. That by reason of the foregoing, plaintiff SANDRA CARINO became sick, sore, lame and disabled; plaintiff has received permanent personal, emotional and psychological injuries that will continue for some time to come; plaintiff will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that plaintiff was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to her damage in a sum which exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A EIGHTH CAUSE OF ACTION**

90. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs 1 through 89 of the complaint herein with the same force and effect as if set forth herein at length.
91. That defendants, Officer Bulfamante, POLICE OFFICER "JOHN DOE #1" and POLICE OFFICER "JOHN DOE #2," acting under the color of authority and without provocation,

viciously and maliciously falsely arrested both plaintiffs, wrongfully depriving plaintiffs of their liberty.

92. That by reason of the foregoing, plaintiffs became sick, sore, lame and disabled; plaintiffs have received permanent personal, emotional and psychological injuries that will continue for some time to come; plaintiffs will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that plaintiffs were caused to suffer great psychological injury, emotional agony and mental anguish and verily believe that same will continue for a long time to come, all to their damage in a sum which exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A NINTH CAUSE OF ACTION**

93. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs 1 through 92 of the complaint herein with the same force and effect as if set forth herein at length.
94. That defendants, Officer Bulfamante, POLICE OFFICER "JOHN DOE #1" and POLICE OFFICER "JOHN DOE #2," acting under the color of authority and without provocation, viciously and maliciously falsely imprisoned plaintiffs, for approximately twelve (12) hours, wrongfully depriving plaintiffs of their liberty.
95. That plaintiffs were conscious of their confinement, did not consent to their confinement, and the confinement was not otherwise privileged or with just or probable cause.
96. That by reason of the foregoing, plaintiffs became sick, sore, lame and disabled; plaintiffs have received permanent personal, emotional and psychological injuries that will continue for some time to come; plaintiffs will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that plaintiffs were caused to

suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to their damage in a sum which exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A TENTH CAUSE OF ACTION**

97. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs 1 through 96 of the complaint herein with the same force and effect as if set forth herein at length.
98. That defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, acting under the color of authority and without provocation, viciously and maliciously falsely prosecuted plaintiffs, wrongfully depriving plaintiffs of their liberty and due process of law.
99. That defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, acting under the color of authority and without provocation, viciously and maliciously falsely compelled plaintiffs to appear in public and in court, wrongfully humiliating plaintiffs herein and depriving them of their liberty and due process of law.
100. That by reason of the foregoing, plaintiffs became sick, sore, lame and disabled; plaintiffs have received permanent personal, emotional and psychological injuries that will continue for some time to come; plaintiffs will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that plaintiffs were caused to suffer great psychological injury, emotional agony and mental anguish and verily believe that same will continue for a long time to come, all to their damage in a sum which exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A ELEVENTH CAUSE OF ACTION**

101. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs 1 through 100 of the complaint herein with the same force and effect as if set forth herein at length.
102. That the aforementioned acts of defendants, under color of law and under color of their authority as employees, agents and/or servants of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, violated plaintiff's property and liberty interests guaranteed to the plaintiffs as citizens of the United States under the Fourteenth Amendment to the United States Constitution, and are therefore liable pursuant to 42 U.S.C. § 1983.
103. That the aforementioned acts of defendants, under color of law and under color of their authority as employees, agents and/or servants of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, violated plaintiff's property and liberty interests guaranteed to plaintiffs as residents of the State of New York under Article 1, Section 6 of the Constitution of the State of New York.
104. That by reason of the foregoing, plaintiffs became sick, sore, lame and disabled; plaintiffs have received permanent personal, emotional and psychological injuries that will continue for some time to come; plaintiffs will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that plaintiffs were caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to their damage in the sum which exceeds the jurisdictional limits of all lower courts.



**AS AND FOR A TWELFTH CAUSE OF ACTION**

105. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs 1 through 104 of the complaint herein with the same force and effect as if set forth herein at length.
106. That the aforementioned acts of Officer Bulfamante, POLICE OFFICER "JOHN DOE #1" and POLICE OFFICER "JOHN DOE #2," under color of law and under color of their authority as employees, agents and/or servants of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, violated plaintiff's right to equal protection under the law guaranteed to plaintiffs as citizens of the United States under the Fourteenth Amendment to the United States Constitution, and are therefore liable pursuant to 42 U.S.C. § 1983.
107. That the aforementioned acts of defendants, Officer Bulfamante, POLICE OFFICER "JOHN DOE #1" and POLICE OFFICER "JOHN DOE #2," under color of law and under color of their authority as employees, agents and/or servants of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, violated plaintiff's right to equal protection under the law guaranteed to plaintiffs as residents of the State of New York under Article 1, Section 11 of the Constitution of the State of New York.
108. That by reason of the foregoing, plaintiffs became sick, sore, lame and disabled; plaintiffs have received permanent personal, emotional and psychological injuries that will continue for some time to come; plaintiffs will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that plaintiffs were caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to their damage in the sum which exceeds the

jurisdictional limits of all lower courts.

**AS AND FOR A THIRTEENH CAUSE OF ACTION**

109. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs 1 through 108 of the complaint herein with the same force and effect as if set forth herein at length.
110. That by reason of the foregoing acts and/or omissions of defendants in violation of the Fourteenth Amendment to the United States Constitution, plaintiffs have been forced to bring this lawsuit to enforce 42 U.S.C. § 1983 and as a result thereof has suffered significant economic loss in the form of attorney's fees.
111. That pursuant to 42 U.S.C. § 1983, plaintiffs are entitled to reasonable attorney's fees as part of costs.

**AS AND FOR A FOURTEENTH CAUSE OF ACTION**

112. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs 1 through 111 of the complaint herein with the same force and effect as if set forth herein at length.
113. That at all times hereinafter mentioned, defendants, without cause or justification, did intentionally inflict emotional distress upon plaintiffs, causing plaintiffs to suffer mental pain and anguish, emotional trauma and conscious pain and suffering.
114. That at all times hereinafter mentioned, defendants, without cause or justification, did negligently inflict emotional distress upon plaintiffs, causing plaintiffs to suffer mental pain and anguish, emotional trauma and conscious pain and suffering.
115. That by reason of the foregoing, plaintiffs became sick, sore, lame and disabled; plaintiffs have received permanent personal, emotional and psychological injuries that will continue

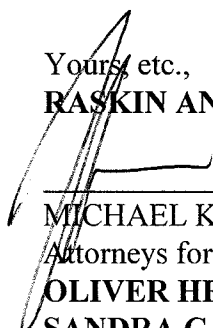
for some time to come; plaintiffs will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that plaintiffs were caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to their damage in the sum which exceeds the jurisdictional limits of all lower courts.

116. This action falls into one or more of the exceptions set forth in CPLR §1602.

**WHEREFORE**, plaintiffs, OLIVER HERNANDEZ and SANDRA CARINO, demands judgement against the defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, OFFICER MARIANO BULFAMANTE, POLICE OFFICER "JOHN DOE #1" and POLICE OFFICER "JOHN DOE #2" ," in an amount which exceeds the jurisdictional limits of all lower courts, together with the costs, interest and disbursements of this action, and for such other and further relief as to this Court may deem just, proper and equitable.

Dated : New York, New York  
August 16, 2017

Yours, etc.,  
**RASKIN AND KREMS, L.L.P.**

  
\_\_\_\_\_  
MICHAEL KREMS, ESQ.

Attorneys for Plaintiffs

**OLIVER HERNANDEZ**

**SANDRA CARINO**

160 Broadway - 4th Floor

New York, New York 10038

(212) 587-3434

## ATTORNEY'S VERIFICATION

STATE OF NEW YORK     )  
                                  )SS.:  
COUNTY OF NEW YORK    )

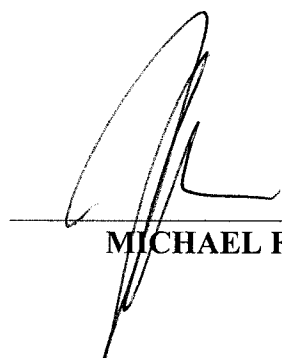
**MICHAEL F. KREMINS**, affirms under the penalties of perjury the following:

I am a member of the firm of **RASKIN & KREMINS, L.L.P.**, attorneys for plaintiff(s) herein.

That I have read and know the contents of the foregoing **COMPLAINT**, that the same is true to my own knowledge except as to the matters therein stated to be alleged on information and belief and that as to those matters he believes it to be true.

That the reason why this verification is made by your affirmant instead of by the Plaintiff is that the Plaintiff is not within the County of New York, which is the County where your affirmant has his office. Your affirmant further says that the grounds of the belief as to all matters in the said **COMPLAINT** are statements of said Plaintiff, papers and records in his possession, and a general investigation of the facts of this case.

Dated: New York, New York  
August 16, 2017

  
\_\_\_\_\_  
**MICHAEL F. KREMINS**

Index No.

SUPREME COURT OF THE STATE OF NEW YORK

COUNTY OF BRONX

OLIVER HERNANDEZ and SANDRA CARINO,

Plaintiffs,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER MARIANO BULFAMANTE, POLICE OFFICER "JOHN DOE #1" and POLICE OFFICER "JOHN DOE #2"

Defendants.

**SUMMONS AND VERIFIED COMPLAINT**

**RASKIN & KREMINS, L.L.P.**

*Attorneys for Plaintiff(s)*

**160 Broadway - 4<sup>th</sup> Floor**

**New York, New York 10038**

**(212) 587-3434**

To: Attorney(s) for Defendant(s)

**PLEASE TAKE NOTICE**

NOTICE OF

ENTRY

☐ that the within is a (certified) true copy of an Order entered in the office of the Clerk of the within named Court on , 2017.

NOTICE OF

SETTLEMENT

☐ that an Order of which the within is a true copy will be presented to the Hon. , one of the judges of the within named Court, at , on .